Rules and Regulations

Title 5—ADMINISTRATIVE PERSONNEL

Chapter I—Civil Service Commission

PART 213—EXCEPTED SERVICE

Treasury Department

Section 213.3305 is amended to show that one position of Staff Assistant to the General Counsel is excepted under Schedule C. Effective on publication in the FEDERAL REGISTER, subparagraph (26) is added to paragraph (a) of § 213.3305 as set out below.

§ 213.3305 **Treasury Department.**

(a) *Office of the Secretary.* * * *

(26) One Staff Assistant to the General Counsel.

* * * * *

(5 U.S.C. 3301, 3302, E.O. 10577; 3 CFR 1954–58 Comp., p. 218)

UNITED STATES CIVIL SERVICE COMMISSION,
[SEAL] JAMES C. SPRY,
Executive Assistant to the Commissioners.

[F.R. Doc. 70-9445; Filed, July 21, 1970; 8:52 a.m.]

PART 213—EXCEPTED SERVICE

Miscellaneous Amendments

Schedule C is amended to remove 49 positions that have been abolished. Effective on publication in the FEDERAL REGISTER, the authorities listed in paragraph (1) are revoked and those listed in paragraph (2) are amended as set out below.

(1) Revoked—§ 213.3310, subparagraph (2) of paragraph (h); in § 213.3311, subparagraphs (11), (14), and (15) of paragraph (a), subparagraphs (3)–(5) of paragraph (b), paragraph (c) in its entirety, subparagraphs (2)–(4) of paragraph (f), subparagraph (1) of paragraph (g), and subparagraphs (1) and (3) of paragraph (h); in § 213.3312, subparagraphs (6) and (7) of paragraph (a); in § 213.3313, paragraph (o) in its entirety; § 213.3314, subparagraph (5) of paragraph (c) and subparagraphs (2) and (4) of paragraph (m); in § 213.3331, paragraphs (b) and (c); in § 213.3368, paragraph (d); in § 213.3384, subparagraph (6) of paragraph (b); and in § 213.3394, subparagraph (4) of paragraph (a).

(2) Amended to show that the following positions have been abolished: one Private Secretary to the Deputy Postmaster General, Post Office Department; one Private Secretary to each of the Assistant Commissioners of the Patent Office, Department of Commerce; one Private Secretary to the Deputy Administrator, Agency for International Development; and one Confidential Assistant and Private Secretary to the Secretary; Department of Housing and Urban Development—Subparagraph (2) of paragraph (h) of § 213.3311; subparagraph (1) of paragraph (h) of § 213.3314; subparagraph (4) of paragraph (a) of § 213.3368; and subparagraph (2) of paragraph (a) of § 213.3384.

§ 213.3310 **Department of Justice.**

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(h) *Land and Natural Resources Division.* * * *

(2) [Revoked]

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§ 213.3311 **Post Office Department.**

(a) *Office of the Postmaster General.* * * *

(11) [Revoked]

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(14) [Revoked]

(15) [Revoked]

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(b) *Bureau of Facilities.* * * *

(3) [Revoked]

(4) [Revoked]

(5) [Revoked]

* * * * *

(c) [Revoked]

* * * * *

(f) *Bureau of Operations.* * * *

(2) [Revoked]

(3) [Revoked]

(4) [Revoked]

(g) *Bureau of Finance.* (1) [Revoked]

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(h) *Office of the Deputy Postmaster General.* (1) [Revoked]

(2) One Private Secretary to the Deputy Postmaster General.

(3) [Revoked]

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§ 213.3312 **Department of the Interior.**

(a) *Office of the Secretary.* * * *

(6) [Revoked]

(7) [Revoked]

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§ 213.3313 **Department of Agriculture.**

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(o) [Revoked]

* * * * *

§ 213.3314 **Department of Commerce.**

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(c) *Business and Defense Services Administration.* * * *

(5) [Revoked]

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(h) *Patent Office.* (1) One Private Secretary to the Commissioner.

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(m) *Office of the Assistant Secretary for Domestic and International Business.* * * *

(2) [Revoked]

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(4) [Revoked]

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§ 213.3331 **National Mediation Board.**

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(b) [Revoked]

(c) [Revoked]

§ 213.3368 **Agency for International Development.**

(a) *Office of the Administrator.* * * *

(4) One Private Secretary to the Deputy Administrator.

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§ 213.3384 **Department of Housing and Urban Development.**

(a) *Office of the Secretary.* * * *

(2) One Executive Secretary to the Secretary.

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(b) *Office of the Assistant Secretary for Mortgage Credit and Federal Housing Commissioner.* * * *

(6) [Revoked]

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§ 213.3394 **Department of Transportation.**

(a) *Office of the Secretary.* * * *

(4) [Revoked]

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(5 U.S.C. 3301, 3302, E.O. 10577; 3 CFR 1954–58 Comp., p. 218)

UNITED STATES CIVIL SERVICE COMMISSION,
[SEAL] JAMES C. SPRY,
Executive Assistant to the Commissioners.

[F.R. Doc. 70-9447; Filed, July 21, 1970; 8:52 a.m.]

Title 43—PUBLIC LANDS: INTERIOR

Chapter II—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 4869]

[New Mexico 8954]

NEW MEXICO

Partial Revocation of Executive Order No. 6143

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

1. Executive Order No. 6143 of May 23, 1933, withdrawing lands to enable the State of New Mexico to make exchange selections as provided by the Act of June 15, 1926, 44 Stat. 746–748, is hereby revoked so far as it affects the following described land:

NEW MEXICO PRINCIPAL MERIDIAN

T. 24 S., R. 21 W.,
Sec. 33, W½.

The area described contains 320 acres in Hidalgo County.

The land is located 4 miles south of Steins, N. Mex. The terrain is mountainous being a part of the western slope of the Peloncillo Mountains. The vegetal cover consists of a sparse cover of tobosa grass and a heavy stand of creosote bush.

2. At 10 a.m. on August 20, 1970, the land shall be open to operation of the public land laws generally, subject to valid existing rights, the provisions of existing withdrawals and the requirements of applicable law. All valid applications received at or prior to 10 a.m. on August 20, 1970, shall be considered as simultaneously filed at that time. Those received thereafter shall be considered in the order of filing.

3. The land has been open to applications and offers under the mineral leasing laws and to location under the U.S. mining laws for metalliferous minerals. It will be open to location for nonmetalliferous minerals at 10 a.m. on August 20, 1970.

Inquiries concerning the land shall be addressed to the Manager, Land Office, Bureau of Land Management, Santa Fe, N. Mex.

HARRISON LOESCH,
Assistant Secretary of the Interior.

JULY 15, 1970.

[F.R. Doc. 70-9356; Filed, July 21, 1970; 8:45 a.m.]

Title 9—ANIMALS AND ANIMAL PRODUCTS

Chapter I—Agricultural Research Service, Department of Agriculture

SUBCHAPTER C—INTERSTATE TRANSPORTATION OF ANIMALS AND POULTRY

PART 76—HOG CHOLERA AND OTHER COMMUNICABLE SWINE DISEASES

Areas Quarantined

Pursuant to provisions of the Act of May 29, 1884, as amended, the Act of February 2, 1903, as amended, the Act of March 3, 1905, as amended, the Act of September 6, 1961, and the Act of July 2, 1962 (21 U.S.C. 111–113, 114g, 115, 117, 120, 121, 123–126, 134b, 134f), Part 76, Title 9, Code of Federal Regulations, restricting the interstate movement of swine and certain products because of hog cholera and other communicable swine diseases, is hereby amended in the following respects:

In § 76.2, the introductory portion of paragraph (e) is amended by adding the name of the State of Pennsylvania; and a new paragraph (e) (10) relating to the State of Pennsylvania is added to read:

(e) * * *

(10) *Pennsylvania.* That portion of Lancaster County bounded by a line beginning at the junction of State Highway 272 and State Highway Legislative Route 36016; thence, following State Highway 272 in a generally southeasterly direction to Township Road 490; thence, following Township Road 490 in a generally northwesterly direction to Township Road 389; thence, following Township Road 389 in a southwesterly direction to State Highway Legislative Route 36016; thence, following State Highway Legislative Route 36016 in a generally southwesterly direction to its junction with State Highway 272.

* * * * *

(Secs. 4–7, 23 Stat. 32, as amended, secs. 1, 2, 32 Stat. 791–792, as amended, secs. 1–4, 33 Stat. 1264, 1265, as amended, sec. 1, 75 Stat. 481, secs. 3 and 11, 76 Stat. 130, 132; 21 U.S.C. 111, 112, 113, 114g, 115, 117, 120, 121, 123–126, 134b, 134f; 29 F.R. 16210, as amended)

Effective date. The foregoing amendment shall become effective upon issuance.

The amendment quarantines a portion of Lancaster County, Pa., because of the existence of hog cholera. This action is deemed necessary to prevent further spread of the disease. The restrictions pertaining to the interstate movement of swine and swine products from or through quarantined areas as contained in 9 CFR Part 76, as amended, will apply to the quarantined area designated herein.

The amendment imposes certain further restrictions necessary to prevent the interstate spread of hog cholera and must be made effective immediately to accomplish its purpose in the public interest. Accordingly, under the administrative procedure provisions in 5 U.S.C. 553, it is found upon good cause that notice and other public procedure with respect to the amendment are impracticable and contrary to the public interest, and good cause is found for making it effective less than 30 days after publication in the FEDERAL REGISTER.

Done at Washington, D.C., this 16th day of July 1970.

F. R. MANGHAM,
Acting Administrator,
Agricultural Research Service.

[F.R. Doc. 70-9380; Filed, July 21, 1970; 8:47 a.m.]

Title 14—AERONAUTICS AND SPACE

Chapter I—Federal Aviation Administration, Department of Transportation

SUBCHAPTER E—AIRSPACE

[Airspace Docket No. 70-WE-12]

PART 71—DESIGNATION OF FEDERAL AIRWAYS, AREA LOW ROUTES, CONTROLLED AIRSPACE, AND REPORTING POINTS

Designation and Alterations of Federal Airways

On April 23, 1970, a notice of proposed rule making was published in the FEDERAL REGISTER (35 F.R. 6511) stating that the Federal Aviation Administration was considering amendments to Part 71 of the Federal Aviation Regulations that would designate segments of VOR Federal airway Nos. 452 and 536, and realign alternate segments of VOR Federal airway Nos. 23 and 287.

Interested persons were afforded an opportunity to participate in the proposed rule making through the submission of comments. All comments received were favorable.

In consideration of the foregoing, Part 71 of the Federal Aviation Regulations is amended, effective 0901 G.m.t., September 17, 1970, as hereinafter set forth.

1. Section 71.123 (35 F.R. 2009) is amended as follows:

a. In V–23 all between "Fort Jones, Calif.;" and "20 miles, 45 MSL INT Portland 350°" is deleted and "Medford, Oreg., including an east alternate via INT Fort Jones 041° and Medford 157° radials; Eugene, Oreg.; Portland, Oreg., including an east alternate and including a west alternate from Fort Jones to Portland via INT Fort Jones 340° and Roseburg, Oreg., 174° radials, Roseburg, INT Roseburg 355° and Corvallis, Oreg., 195° radials, Corvallis, and Newberg, Oreg.;" is substituted therefor.

b. In V–287 all between "From Medford, Oreg.," and "Portland, Oreg.," is deleted and "North Bend, Oreg.; Newberg, Oreg., including a west alternate from North Bend to Newberg via Newport, Oreg., and including an east alternate from Medford to the INT Corvallis, Oreg., 352° and Newberg 204° radials via Roseburg, Oreg., Eugene, Oreg., and Corvallis;" is substituted therefor.

c. In V–536 "From Corvallis, Oreg.," is deleted and "From North Bend, Oreg., INT North Bend 023° and Corvallis, Oreg., 235° radials; Corvallis;" is substituted therefor.

d. V–452 is added:

V–452 From Newport, Oreg., to Eugene, Oreg.

(Sec. 307(a), Federal Aviation Act of 1958, 49 U.S.C. 1348, sec. 6(c), Department of Transportation Act, 49 U.S.C. 1655(c))

Issued in Washington, D.C., on July 16, 1970.

H. B. HELSTROM,
Chief, Airspace and Air Traffic Rules Division.

[F.R. Doc. 70-9373; Filed, July 21, 1970; 8:47 a.m.]

[Airspace Docket No. 70-CE-25]

PART 71—DESIGNATION OF FEDERAL AIRWAYS, AREA LOW ROUTES, CONTROLLED AIRSPACE, AND REPORTING POINTS

Alteration of Federal Airway Segments

On April 28, 1970, a notice of proposed rule making was published in the FEDERAL REGISTER (35 F.R. 6714) stating that the Federal Aviation Administration was considering amendments to Part 71 of the Federal Aviation Regulations that would alter V–26 and V–181.